

Court. Any prior dismissal entered herein against the Defendant and/or notice of conditional settlement is hereby set aside in connection with entry of such judgment.

4. Although the Court finds that Defendant was duly served with the motion papers, it is not clear that the papers, *as served*, contained the hearing information (date, time, etc.). THE PARTIES ARE ORDERED TO APPEAR to confirm whether Defendant was duly served with the motion papers which contained notice of the assigned hearing information at the time of service or if separate notice of the assigned hearing date was otherwise subsequently given.

6. 9:00 AM CASE NUMBER: C23-01955

CASE NAME: NICOLE TRIPPIE VS. MISTY LEONE

***HEARING ON MOTION IN RE: RE: COURT APPOINTED RECEIVER'S MOTION FOR ORDER APPROVING FINAL REPORT AND ACCOUNT, DISCHARGING RECEIVER, APPROVING FINAL FEES AND COSTS OF RECEIVER AND COUNSEL, APPROVING DISPOSITION OF CMD SALOON, LLC'S ASSETS AND TERMINATING RECEIVERSHIP.**

FILED BY:

TENTATIVE RULING:

This matter was previously continued to April 23, 2026. See Order entered January 20, 2026.

7. 9:00 AM CASE NUMBER: C24-01143

CASE NAME: BANC OF CALIFORNIA VS. SUTTER SQUARE HOLDINGS, LLC, A DELAWARE LIMITED LIABILITY COMPANY

***HEARING ON MOTION IN RE: ORDER: (1) APPROVING RECEIVER'S FINAL ACCOUNTING; (2) APPROVING RECEIVER'S FEES AND EXPENSES; (3) APPROVING FINAL DISBURSEMENT OF FUNDS; (4) EXONERATING RECEIVER'S BOND ETC**

FILED BY: RAILE, BELLAN

TENTATIVE RULING:

Parties to Appear.

8. 9:00 AM CASE NUMBER: C24-01622

CASE NAME: CHRISTOPHER JARZYNKA VS. TATILA DOWNING

***HEARING ON MOTION IN RE: SELL PROPERTY**

FILED BY: JARZYNKA, CHRISTOPHER THOMAS

TENTATIVE RULING:

Plaintiff Jarzynka's motion to sell the property is denied without prejudice. Plaintiff may renew his motion after the Court makes a determination on whether plaintiff is entitled to partition and if so, determines the interests of the parties in the property.

Plaintiff alleges that he and Defendant purchased a property on Caitlin Court together as tenants-in-common, but their relationship has ended and Plaintiff now wants to sell the property.

Plaintiff filed this case requesting that the Court order a partition of the property.

The question here is whether the Court should order the sale of the property pursuant to Code of Civil Procedure sections 874.317 to 874.321 or if the Court should first determine whether Plaintiff has a right to partition the property and each parties' interests in the property pursuant to Code of Civil Procedure sections 872.710(a) and 872.720(a).

Before considering whether Plaintiff is correct in his analysis of Code of Civil Procedure section 874.317, et seq. the Court must determine whether the Court has already answered this question.

In August 2024, Plaintiff filed a motion requesting that the Court order the determination of the fair market value of the property by appointing an appraiser. That motion also noted that the court could enter an interlocutory judgement that Plaintiff is entitled to partition and that each side owns an undivided one-half interest in the property. But those issues were not included in the notice of motion or in the Court's ruling on the motion. Thus, while discussed in August 2024, there is no indication that the Court made a determination regarding the parties' rights to a partition or their respective interests when ordering a determination of the fair market value of the property. (See 10/28/24 minute order; order filed 11/20/24.)

Later, the Court determined the fair market value of the property and ordered the parties to engage in the buyout process. (Order filed 9/19/25.) That order states that if Defendant does not buyout Plaintiff by depositing \$747,000 with the Court then the property shall be "sold through private sale as the Court may further order." There is no indication from this order or the related briefing on determining the fair market value that Judge Devine decided that the property could be sold before making a finding regarding the right to have a petition and the parties' interests in the property. Thus, this Court can consider the issue now. Further, on September 19, 2025, the Court held a case management conference where Judge Devine set a "Further CMC re: trial setting conference" for March 5, 2026. (9/19/25 minute order.) Setting a trial setting conference also suggests that the Court contemplated making the necessary factual determinations before ordering the property sold.

The Court finds that it has not previously decided Plaintiff's right to partition the property and each sides interest in the property. Further, the Court has not previously decided whether it can proceed with the sale of property before making these determinations.

The Court now turns to the main question presented by this motion, namely whether the Court should order the sale of the property pursuant to Code of Civil Procedure sections 874.317 to 874.321 or if the Court should first determine whether Plaintiff has a right to partition the property and each parties' interests in the property pursuant to Code of Civil Procedure sections 872.710(a) and 872.720(a).

In 2022, the Uniform Partition of Heirs Property Act became effective in California. The following year the Heirs Act was amended to the Partition of Real Property Act and now applies to properties beyond those involving heirs.

Partition of Real Property Act (PRPA), states that “the property shall be partitioned under this chapter unless all of the cotenants otherwise agree... .” (Code of Civil Procedure section 874.313(a).) Further, “This chapter supplements the other provisions of this title and, if an action is governed by this chapter, this chapter shall control over any provisions of this title that are inconsistent with this chapter.” (Code of Civil Procedure section 874.313(a).)

The PRPA provides a statutory scheme for determining the value of property, allowing cotenants the opportunity to purchase the property and encouraging partition in kind where such option is available. First, unless the parties agree on value, the court shall determine the fair market value of the property by using a disinterested real estate appraiser and holding a hearing on the matter. (Code of Civil Procedure section 874.316.) Next, after a determination by the court on the fair market value of the property, the court shall send a notice giving cotenants 45 days to elect to buyout the other cotenants. The purchase price is the value of the entire parcel multiplied by the cotenant’s fractional ownership of the entire parcel. (Code of Civil Procedure section 874.317.) If no cotenants elect to buy the property, the court proceeds to consider whether a partition in kind can be ordered. (Code of Civil Procedure sections 874.317(d)(3), 874.318.) The Court must order a partition in kind unless none of the cotenants request a partition in kind or the court has made a determination that a partition in kind will cause great prejudice to the cotenants. (Code of Civil Procedure sections 874.318, 817.319.) Where a partition by sale is ordered, the statute provides a process for sale, which is generally done as an open-market sale using a disinterested real estate broker. (Code of Civil Procedure sections 874.320, 874.321.)

Thus, the PRPA sets forth a statutory scheme for how a court should go through the process of partitioning a property. The PRPA does not address the timing for when the court must make determinations as to “whether the plaintiff has the right to partition” and a determination of “the interests of the parties in the property”. (Code of Civil Procedure sections 872.710(a), 872.720(a).)

There are no published opinions addressing the interplay between sections 872.710, et. seq. and 874.313 et seq. Thus, the Court must engage in statutory construction. Courts “begin as always with the statute’s actual words, the “most reliable indicator” of legislative intent, “assigning them their usual and ordinary meanings, and construing them in context.” (*Even Zohar Construction & Remodeling, Inc. v. Bellaire Townhouses, LLC* (2015) 61 Cal.4th 830, 837-838 (*Even Zohar*).) When trying to harmonize sections 872.710, et seq. and 874.313, et seq. there are two useful principles of statutory construction. “First, “[a] court must, where reasonably possible, harmonize statutes, reconcile seeming inconsistencies in them, and construe them to give force and effect to all of their provisions. ...” [Citation.] Second, all “presumptions are against a repeal by implication” [Citation.], including partial repeals that occur when one statute implicitly limits another statute’s scope of operation [citation].” (*Even Zohar, supra*, 61 Cal.4th at 838.)

The Court is mindful that the PRPA states that it “shall control over any provisions of this title that are inconsistent”, but nothing in the PRPA addresses the procedures for determining whether a party has a right to partition in the first place and determining the parties’ interests in the property. Thus, under the rules of statutory construction, the Court will not find that the PRPA implicitly repealed the requirement that the Court must make determinations regarding a party’s right to a

partition and each parties' interests in the property.

The Court's interpretation is further supported by the assumptions within the PRPA. The PRPA assumes that the right to a partition and the parties' interests in the property have already been made. For example, Code of Civil Procedure section 874.317 allows a cotenant to buy out the other cotenants using the fair market value and cotenant's fractional ownership of the entire parcel. This section then assumes that the Court has already made a finding as to each parties' interest in the property. Without such a finding, a party would not know what they would have to pay to buy the other cotenants' interest in the property.

Further, case law is clear that the court needs to make these determinations before ordering a sale of the property. "[A]n interlocutory judgment in a partition action is to include two elements: a determination of the parties' interests in the property and an order granting the partition. (§ 872.720, subd. (a).) ... [T]he manner of partition—i.e., a physical division or sale of the property—is to be decided when or after the parties' ownership interests are determined, but not before. (*Ibid.*)" (*Summers v. Superior Court* (2018) 24 Cal.App.5th 138, 143.) Nothing in the PRPA indicates that it was written to overrule cases like *Summers* or change the findings required before the court decides how to partition the property.

The Court finds that first the Court must determine the parties' right to a partition and the parties' interests in the property. Once those determinations have been made then the Court can proceed through the PRPA process to partition the property, assuming that the Court finds that Plaintiff has a right to petition the property.

9. 9:00 AM CASE NUMBER: C24-01921
CASE NAME: A-S PIPELINES INC., A CALIFORNIA CORPORATION VS. DAVID SEENO
HEARING ON SUMMARY MOTION ON FIRST, SECOND, THIRD AND FOURTH CLAIMS
FILED BY: SEENO, ALBERT D., JR.
TENTATIVE RULING:

Before the Court is Defendants Albert D. Seeno, Jr., Willow View Association, and Eden Valley Ranch LLC's Motion for Summary Judgment on First, Second, Third, and Fourth Claims.

As noted by Defendants, they have resolved their disputes with Plaintiff Albert D. Seeno III, and as such his "claims are not implicated in this Motion." The Motion instead only addresses Plaintiff David Seeno's claims. As the parties have the same surname, the Court will refer to them by their first names for clarity. The Court means no disrespect in doing so.

For the following reasons, the Motion for Summary Judgment is **DENIED**.

General Factual and Procedural Background

Through several trusts and an LLC, the parties have an ownership interest in property known as Eden Valley Ranch ("Ranch"). At all relevant times Defendant Albert D. Seeno Jr. ("ADSJ") has maintained control over the Ranch. For decades, David enjoyed unrestrained access to the Ranch, including being able to stay there for long periods of time. (David Seeno Decl. ¶ 2.) Over time, he accumulated